

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 01/09/2026

ALL APPEARANCES WILL BE BY ZOOM

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, notice is given by of an intent to argue the matter.

Counsel or self-represented parties must email Department 32 (dept32@contracosta.courts.ca.gov) to request argument and **must specify in detail, what provisions(s) of the tentative ruling they intend to argue and why.**

Counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by email by no later than 4:00 p.m. of their decision to appear and of the issues to be argued.

Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

CourtCall will **NOT** be used by D32.

Zoom is approved for all hearings except Issue Conferences and Trials. Notice of intent to argue must be given in writing by email, but if you have questions, **Dept. 32's telephone number is: (925) 608-1132.**

Dept. 32's email address is: dept32@contracosta.courts.ca.gov.

Submission of Orders After Hearing in Department 32 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16138675141?pwd=ZkZmMldRVzRHM3VrOTJ5Z1RTelFQdz09>

Meeting ID: 161 3867 5141

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C22-02577
CASE NAME: PATANISHA DAVIS PIERSON VS. BRYANT HARRIS
***HEARING ON MOTION IN RE: DEMURRER TO 2ND AMENDED COMPLAINT**
FILED BY: HARRIS, BRYANT
TENTATIVE RULING:

The Court recuses itself in this case. Further notice will be sent to the parties regarding the new department and continued hearing date.

2. 9:00 AM CASE NUMBER: C22-02577
CASE NAME: PATANISHA DAVIS PIERSON VS. BRYANT HARRIS
MOTION TO STRIKE PRAYER FROM 2ND AMENDED COMPLAINT
FILED BY: HARRIS, BRYANT
TENTATIVE RULING:

The Court recuses itself in this case. Further notice will be sent to the parties regarding the new department and continued hearing date.

3. 9:00 AM CASE NUMBER: C24-02448
CASE NAME: FAT.HOMES LLC VS. SUKHPREET BRAR
***HEARING ON MOTION IN RE: EXPUNGE LIS PENDENS**
FILED BY: FAT.HOMES LLC
TENTATIVE RULING:

The Court continues the hearing on this motion to January 16, 2026 at 9:00 a.m.

4. 9:00 AM CASE NUMBER: C24-02540
CASE NAME: MONICA JOHNSON-BLAIR VS. BENJAMIN GREER, MD
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: EQUITY HR, INC.
TENTATIVE RULING:

Defendant Equity HR's demurrer to the Second Amended Complaint is sustained in its entirety with leave to amend. Plaintiff has ten days from the notice of entry of order to file a third amended complaint.

Defendant argues that they should not be considered an employer in this case because they are alleged to be one of three joint employers and there are no facts supporting Defendant Equity as an employer.

Defendant argues that this Court should apply in integrated enterprise test. " 'The federal courts have developed a test, derived from federal labor case law, to determine whether two corporations

should be considered a single employer for title VII purposes. Commonly called the “integrated enterprise” test, it has four factors: interrelation of operations, common management, centralized control of labor relations, and common ownership or financial control.’ [Citation.]... Common ownership or control alone is never enough to establish single employer liability, and courts ‘often deem centralized control of labor relations the most important’ factor. [Citation.] ‘ “The critical question is, ‘[w]hat entity made the final decisions regarding employment matters related to the person claiming discrimination?’ ” ‘ (Ibid.)” (*Mathews v. Happy Valley Conference Center, Inc.* (2019) 43 Cal.App.5th 236, 248.)

Plaintiff, however, argues that the Court should follow *Martinez v. Combs* (2010) 49 Cal.4th 35. “California law specifies the elements necessary to define an employer. ‘To employ’ has ‘three alternative definitions.’ (*Martinez v. Combs* (2010) 49 Cal.4th 35, 64.) ‘It means: (a) to exercise control over the wages, hours or working conditions, or (b) to suffer or permit to work, or (c) to engage, thereby creating a common law employment relationship.’ (*Ibid.*) [] The broad definition of an employer includes “any person ... who directly or indirectly, or through an agent or any other person, employs or exercises control over the wages, hours, or working conditions of [an employee].”” [Citation.]” (*Castaneda v. Ensign Group, Inc.* (2014) 229 Cal.App.4th 1015, 1019.)

“ ‘There is no magic formula for determining whether an organization is a joint employer. Rather, the court must analyze “myriad facts surrounding the employment relationship in question.” [Citation.] No one factor is decisive. [Citation.]’ [Citation.]” (*Vernon v. State of California* (2004) 116 Cal.App.4th 114, 124-125.)

Defendant argues that the SAC does not provide facts showing they are a joint employer. The SAC makes only a conclusory allegation that Healthmet, Vital and Equity are defendant employers and that Plaintiff worked for them. (SAC ¶¶ 5, 11.) The Court finds that Plaintiff has not alleged facts showing that Equity is a joint employer of Plaintiff. In opposition Plaintiff relies on facts not alleged in the complaint. Equity HR’s demurrer is therefore sustained in its entirety for Plaintiff to allege facts showing that Equity HR is a joint employer.

Plaintiff’s requests for judicial notice are granted. Healthmet’s cross-complaint, Equity’s answer and the Court’s order granting the demurrer to the first amended complaint are all part of the record in this case. In requesting judicial notice, Plaintiff seeks judicial notice of the documents attached as exhibits to Healthmet’s cross-complaint. The Court may take judicial notice that these documents are attached to the cross-complaint, but does not take notice of the truth of their contents. Thus the request for judicial notice, even if granted, does not cure the defect in the pleading.

Defendant also argues that the claims for assault (Seventh Cause of Action), intentional infliction of emotional distress (Eighth Cause of Action) and unfair business practice (Ninth Cause of Action) fail.

For the reasons explained in Healthmet’s demurrer, the assault claim (Seventh Cause of Action) has not been sufficiently alleged. Further, the Court agrees with Defendant’s argument that there are no allegations showing that Equity HR was involved in the assault. In addition to the joint employer issue, the demurrer to the assault claim is sustained with leave to amend on these grounds.

As to the intentional infliction of emotional distress (IIED) claim (Eighth Cause of Action), Defendant argues that the facts alleged are insufficient to state an IIED claim and that there are no facts as to Equity HR. The Court finds that the facts alleged are sufficient to show extreme and outrageous conduct, but that the facts alleged do not show how Equity HR could be liable for Greer’s conduct. In

addition to the joint employer issue, the demurrer is sustained with leave to amend on this ground.

Defendant Equity HR argues that the unfair competition claim (Ninth Cause of Action) fails because the other claims fail. The Court is already sustaining the demurrer as to this claim on the joint employer issue and declines to rule on this argument as to Equity HR until there are facts showing Equity HR as a joint employer. Equity HR may re-raise this argument in the future.

5. 9:00 AM CASE NUMBER: C24-02540
CASE NAME: MONICA JOHNSON-BLAIR VS. BENJAMIN GREER, MD
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT RE: BLAIR
FILED BY:

TENTATIVE RULING:

Defendant Healthmet, Inc. and Benjamin Greer, M.D.'s demurrer to the Second Amended Complaint is overruled as to cause of action 1, 2, 3, 4, 8 and 9, and otherwise sustained with leave to amend. Plaintiff has ten days from the notice of entry of order to file a third amended complaint.

Plaintiff is suing for (1) constructive tortious discharge in violation of public policy, (2) gender discrimination, (3) harassment based on gender, (4) failure to prevent discrimination and harassment, (5) violation of Labor Code section 1102.5, (6) violation of Labor Code section 6310-6311, (7) assault, (8) intentional infliction of emotional distress and (9) unfair business practices.

The Court previously sustained Defendants' demurrer with leave to amend because Plaintiff requested leave to amend. The Court did not consider the individual claims in depth.

Defendants Healthmet and Greer demur to each cause of action based on the failure to allege sufficient facts to state a cause of action under Code of Civil Procedure section 430.10(e).

Plaintiff alleges that she worked at Defendant Employer from February 2022 to May 2024. (SAC ¶11.) She alleges that when she interviewed for the job, Greer stated that he could be better than Plaintiff's fiancée. (SAC ¶12.) Plaintiff alleges that Greer is the principal and owner of the business, which creates a reasonable inference that Greer was Plaintiff's supervisor. (SAC ¶12.) Two weeks after being hired, Greer showed Plaintiff images of very attractive woman dressed in tight, revealing yoga outfits. Greer ask Plaintiff what she thought and if he should go out with the woman. (SAC ¶13.)

Plaintiff was promoted from receptionist to office manager in October 2022. (SAC ¶14.) Initially, Greer came to the office where Plaintiff worked once a week. However, the main doctor at Plaintiff's location lost her medical license in March 2023 and Greer began coming to the office on a daily basis. (SAC ¶¶15-18.) Plaintiff alleges that Defendant Employer and Greer had a pattern of discriminating, harassing and retaliating against staff based on gender. (SAC ¶22.) Greer verbally abused and sexually harassed a former staff member O'Neil. (SAC ¶¶23-25.) On one occasion, Plaintiff was on her knees cleaning the fridge when Greer came in and made a comment about Plaintiff being on her knees. (SAC ¶26-27.) Greer commented on the physical appearance of a medical assistant. (SAC ¶28.) Greer showed Plaintiff photographs of his ex-wife and asked if Plaintiff thought she was pretty.

(SAC ¶129.)

When hiring a medical assistant, Greer asked Plaintiff about an applicant's nationality or race because of her name. Plaintiff told Greer it was illegal to ask those types of questions. (SAC ¶¶50-51.) When Greer met the applicant, he told Plaintiff that he would not hire her because she was fat. (SAC ¶53.)

Several times, Greer would yell at Plaintiff regarding problems with the billing team or when Plaintiff was too busy and could not answer all incoming phone calls. Greer would become very angry if Plaintiff did not answer his calls, even if she was busy helping a patient. Greer yelled at Plaintiff for small things. (SAC ¶¶30-49, 54-87.) Ultimately, Plaintiff became ill and went out on medical / disability leave on September 11, 2023. (SAC ¶88.) She resigned in May 2024 after determining that the job was too unsafe and toxic for her to return to work. (SAC ¶¶89-90.)

Constructive discharge in violation of public policy (First Cause of Action)

"The elements of a claim for wrongful discharge in violation of public policy are (1) an employer-employee relationship, (2) the employer terminated the plaintiff's employment, (3) the termination was substantially motivated by a violation of public policy, and (4) the discharge caused the plaintiff harm. [Citation.]" (*Yau v. Allen* (2014) 229 Cal.App.4th 144, 154.)

The "public policy" must meet several requirements. "First, the policy must be supported by either constitutional or statutory provisions. Second, the policy must be 'public' in the sense that it 'inures to the benefit of the public' rather than serving merely the interests of the individual. Third, the policy must have been articulated at the time of the discharge. Fourth, the policy must be 'fundamental' and 'substantial.' " (*Stevenson v. Superior Court* (1997) 16 Cal.4th 880, 889-890.) FEHA's prohibition on discrimination based upon an employee's protected status (such as gender) is a sufficient public policy. (*Stevenson v. Superior Court* (1997) 16 Cal.4th 880, 897 [age discrimination]; *Rojo v. Kliger* (1990), 52 Cal. 3d 65, 70 [sex discrimination].)

" 'Constructive discharge, like actual discharge, is a materially adverse employment action.' [Citation.]" (*Steele v. Youthful Offender Parole Bd.* (2008) 162 Cal.App.4th 1241, 1253.) " 'Constructive discharge occurs when the employer's conduct effectively forces an employee to resign. ... As a result, a constructive discharge is legally regarded as a firing rather than a resignation. [Citation.]" (*Turner v. Anheuser-Busch* (1994) 7 Cal.4th 1238, 1244-1245 (*Turner*).)" (*Steele, supra*, 162 Cal.App.4th at 1253.)

"Constructive discharge occurs only when the employer coerces the employee's resignation, either by creating working conditions that are intolerable under an objective standard, or by failing to remedy objectively intolerable working conditions that actually are known to the employer. [Citation.] We have said 'a constructive discharge is legally regarded as a firing rather than a resignation.' [Citation.]" (*Mullins v. Rockwell Internat. Corp.* (1997) 15 Cal.4th 731, 737.)

Defendants argue that Plaintiff has not alleged facts showing constructive discharge, has not alleged a sufficient public policy and has not alleged that her constructive discharge was substantially motivated by Greer's behavior.

Plaintiff alleged repeated incidents of yelling by her supervisor and also alleged facts showing sexual harassment. Plaintiff alleged that Greer refused to fire Plaintiff, but continued to blame her and

yell at her. The Court finds that Plaintiff has alleged facts showing constructive discharge. Further, the facts alleged show that the public policy here was gender or sex discrimination. Finally, there is a sufficient nexus between Greer's treatment of Plaintiff, causing the constructive discharge, and Greer's alleged discrimination based on gender.

The demurrer to constructive discharge in violation of public policy is overruled.

Gender discrimination (Second Cause of Action)

For a discrimination claim, "[g]enerally, the plaintiff must provide evidence that (1) he was a member of a protected class, (2) he was qualified for the position he sought or was performing competently in the position he held, (3) he suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive. [Citations.]" (*Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 355.)

Defendants argue that Plaintiff has not provided sufficient facts showing that Defendants discriminated against her based on gender. The facts alleged show that Greer treated Plaintiff differently because of her gender, including making sexual innuendoes and discussing other women's appearances with Plaintiff. These allegations are sufficient at the pleading stage to show that Defendants' actions were based on a discriminatory motive.

Defendants argue that Plaintiff has not alleged an adverse employment action. In opposition, Plaintiff argues that they allege that "Plaintiff was transferred from Oakland to Pittsburgh (sic), had job duties removed, and was constructively discharged. (SAC ¶¶ 77, 81.)" Paragraphs 77 and 81 do not include these factual allegations, nor was the Court able to find allegations that Plaintiff was transferred or had job duties removed elsewhere in the SAC. Plaintiff has, however, alleged sufficient facts to show constructive discharge. "'Constructive discharge, like actual discharge, is a materially adverse employment action.'" (*E.E.O.C. v. University of Chicago Hospitals* (7th Cir. 2002) 276 F.3d 326, 331–332.)" (*Steele v. Youthful Offender Parole Bd.* (2008) 162 Cal.App.4th 1241, 1253.)

Therefore, the demurrer to the discrimination claim is overruled.

Harassment based on gender (Third Cause of Action)

In order to state a claim for harassment in violation of FEHA, Plaintiff must allege facts showing that "(1) she is a member of a protected class; (2) she was subjected to unwelcome harassment; (3) the harassment was based on her protected status; (4) the harassment unreasonably interfered with her work performance by creating an intimidating, hostile, or offensive work environment; and (5) defendants are liable for the harassment. [Citation.]" (*Ortiz v. Dameron Hospital Assn.* (2019) 37 Cal.App.5th 568, 581.)

" 'The law prohibiting harassment is violated "[w]hen the workplace is permeated with discriminatory intimidation, ridicule and insult that is ' "sufficiently severe or pervasive to alter the conditions of the victim's employment and create an abusive working environment." ' " [Citations.]" [Citation.] ...All harassment claims require severe or pervasive conduct. [Citation.]" (*Caldera v. Department of Corrections & Rehabilitation* (2018) 25 Cal.App.5th 31, 38.) " '[H]arassment consists of conduct outside the scope of necessary job performance, conduct presumably engaged in for personal gratification, because of meanness or bigotry, or for other personal motives. Harassment is

not conduct of a type necessary for management of the employer's business or performance of the supervisory employee's job. [Citation.]’ ” (*Reno v. Baird* (1998) 18 Cal.4th 640, 645-646.)

Defendants argue that Plaintiff has not alleged sufficient facts to show that harassment by Greer was severe and pervasive. Here, the allegations are that Greer was Plaintiff’s supervisor and made several sexual innuendo comments and discussed other women’s bodies with Plaintiff. These actions by Plaintiff’s supervisor are sufficient to show severe conduct and thus, Plaintiff has alleged facts showing sexual harassment.

The demurrer to the harassment claim is overruled.

Failure to prevent discrimination and harassment (Fourth Cause of Action)

In order to state a claim for the failure to prevent harassment or discrimination, the plaintiff must first state a claim for that harassment or discrimination. (*M.F. v. Pacific Pearl Hotel Management LLC* (2017) 16 Cal.App.5th 693, 700-701; see also CACI 2527.)

Defendants argue that Plaintiff has not alleged a claim for harassment or discrimination and therefore this claim also fails. As explained above, the Court has found that Plaintiff has alleged claims for harassment and discrimination. The demurrer to this claim is overruled.

Labor Code 1102.5 (Fifth Cause of Action)

Labor Code section 1102.5 protects employees from retaliation when the employee discloses wrongdoing by the employer to various authorities. (*Lawson v. PPG Architectural Finishes, Inc.* (2022) 12 Cal.5th 703, 709.) The authorities include “a person with authority over the employee or another employee who has the authority to investigate, discover, or correct the violation or noncompliance”. (Labor Code section 1102.5(b).)

A prima facie case of “whistleblower” retaliation under California Labor Code section 1102.5(b) or (c) requires a showing that: (1) plaintiff engaged in a protected activity under the statute, (2) plaintiff was subjected to an adverse employment action, and (3) there is a causal link between the two. (See *Mokler v. Cty. of Orange* (2007) 157 Cal.App.4th 121, 138.) To engage in protected conduct, the employee must have reasonable cause to believe the information disclosed, or the activity they refused to participate in, violates the law. (*Id.* at 139-140.)

Defendant argues that Plaintiff has not alleged any protected activity. In response, Plaintiff points to paragraph 77, which she claims states that she complained about the toxic work environment and was transferred to Pittsburg as a result. Those facts are not alleged in paragraph 77 and the Court could not find allegations regarding a transfer to Pittsburg in the complaint.

The demurrer as to the Labor Code section 1102.5 claim is sustained with leave to amend.

Labor Code section 6310-6311 (Sixth Cause of Action)

Labor Code sections 6310-6311 prohibit employers from retaliating against employees who make complaints about workplace safety, either to their employer or to government agencies, or who participate in proceedings related to workplace safety violations. Section 6310 provides a list of

protected activities, including making a complaint to OSHA, filing a proceeding or testifying in a proceeding related to employee's rights, participating in a safety committee, reporting a work-related injury or requesting work-related injury records. (Labor Code section 6310, CACI 4605.)

Defendants argue that Plaintiff has not alleged facts showing she made complaints about workplace safety, and instead only alleges that she complained about feeling unsafe at work. Defendants also argue that Plaintiff has not alleged any retaliation as a result. Plaintiff has not shown how her complaint that the workplace was unsafe is sufficient to constitute a protected action under section 6310.

As to an adverse employment action, Plaintiff points to paragraph 77 where she claims it alleges that Plaintiff complained about feeling unsafe in the workplace and that the abuse intensified after Plaintiff's complaints and she was transferred and had duties removed following her complaint. Paragraph 77 does not include these allegations. Plaintiff does allege that she told Greer she felt unsafe at work and that his outbursts caused a toxic work environment. (SAC ¶87.) These allegations, however, do not show that Plaintiff participated in one of the actions included in section 6310.

Plaintiff has not alleged facts showing that her actions fell within the protections in section 6310 and she has not alleged an adverse employment action. The demurrer as to the sections 6310-6311 claim is sustained with leave to amend.

Assault (Seventh Cause of Action)

For an assault claim, plaintiff must show that (1) the defendant acted with the intent to cause harmful or offensive contact, or threatened to touch Plaintiff in a harmful or offensive manner; (2) Plaintiff reasonably believed she was about to be touched in a harmful or offensive manner or it reasonably appeared to Plaintiff that the defendant was about to carry out the threat; (3) Plaintiff did not consent to defendant's conduct; (4) Plaintiff was harmed; and (5) the defendant's conduct was a substantial factor in causing Plaintiff's harm. (*So v. Shin* (2013) 212 Cal.App.4th 652, 668-669.)

Defendants argue that Plaintiff has not alleged an intent to cause harmful or offensive contact by Greer, that she believed she was about to be touched in a harmful or offensive manner or a reasonable apprehension of unwanted touching. Plaintiff argues that she has sufficiently alleged assault because she alleged extreme verbal abuse by Greer and because the Court already found that these allegations describe a potentially violent work environment.

The Court has reviewed the allegations describing Greer's conduct, including the times when he yelled at Plaintiff. None of the allegations show that Greer threatened to touch Plaintiff in a harmful manner or that Plaintiff believed she was about to be touched. Therefore, Plaintiff has not alleged a claim for assault.

The demurrer as to the assault claim is sustained with leave to amend.

Intentional infliction of emotional distress (Eighth Cause of Action)

" 'The elements of the tort of intentional infliction of emotional distress [IIED] are: " '(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme

emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. ...' Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community." ' [Citation.] 'Liability for intentional infliction of emotional distress " 'does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities.' " ' [Citation.] A retaliatory motive alone is insufficient to sustain a claim for intentional infliction of emotional distress. [Citation.]" (*Light v. Department of Parks & Recreation* (2017) 14 Cal.App.5th 75, 101-102.)

Defendants argue that the allegations here are insufficient to show extreme and outrageous conduct by Greer. Plaintiff argues that the pattern of extreme verbal abuse, gender-based harassment, retaliation, and creation of a "potentially violent" work environment that forced Plaintiff to take medical leave and ultimately resigned, constitutes extreme and outrageous conduct. Here the facts alleged show that Plaintiff's supervisor made several comments with sexual innuendo and discussed other women's appearances with Plaintiff. In addition, Plaintiff's supervisor, Greer, repeatedly yelled at her in front of patients and others. Taken together and read in a light favorable to Plaintiff, the Court finds that the allegations here are sufficient to show extreme and outrageous conduct at the pleading stage. The demurrer to the IIED claim is overruled.

Unfair business practices (Ninth Cause of Action)

Defendants argue that the unfair business practices claim fails because Plaintiff cannot show unlawful, unfair or deceptive practices. Plaintiff has alleged claims for harassment and discrimination, which are unlawful and thus, this argument fails.

The demurrer to the unfair business practices claim is therefore overruled.

Leave to Amend

Defendants argue that Plaintiff should not be given leave to amend because Plaintiff has already amended her complaint twice. This is the first time the Court has provided guidance on Plaintiff's individual causes of action and the Court finds that leave to amend is appropriate.

Defendant Vital Total Health Medical Group's Joinder

Defendant Vital Total Health Medical Group, Inc. filed a joinder on July 10, 2025 that indicated it was set for the same date as Healthmet's demurrer. The joinder, however, was not given its own line on the calendar. Still, it was properly served on Plaintiff and Plaintiff did not oppose the joinder. Further, in the joinder Defendant Vital argues that it is being sued for the same reasons as Healthmet and has the same arguments on demurrer. Therefore the Court will consider Vital's joinder. In the future, however, Vital should ensure that its joinder (should it file another) be given its own line on the calendar.

Defendant Vital Total Health Medical Group, Inc.'s joinder to Healthmet and Greer's demurrer is **overruled as to cause of action 1, 2, 3, 4, 8 and 9 and otherwise sustained with leave to amend**. Plaintiff has ten days from the notice of entry of order to file a third amended complaint.

6. 9:00 AM CASE NUMBER: C25-00284
CASE NAME: MAKHLOUF DOUCHER VS. R.G. HILL & COMPANY
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLAINTIFFS' COMPLAINT**
FILED BY: R.G. HILL & COMPANY
TENTATIVE RULING:

Defendant R.G. Hill & Company's unopposed Motion to Strike is Granted without Leave to Amend. The following language shall be stricken from the Complaint:

- Plaintiffs' Complaint at p. 17, paragraph 83, which states "After plaintiffs have had the opportunity to inspect defendants' net worth, plaintiffs will seek leave to amend this Complaint to ask that defendants, and each of them, pay plaintiffs punitive and exemplary damages in an amount sufficient to ensure that defendants, and each of them, will be deterred from similar conduct and as an example to deter others from disregarding the rights of similar plaintiffs."
- Plaintiffs' Complaint at p. 18, section E, which states "That the Court adjudge and decree that, after plaintiffs have had the opportunity to inspect defendants' net worth, defendants, and each of them, pay plaintiffs punitive and exemplary damages in an amount so as to ensure that defendants will be deterred from similar conduct and as an example to deter others from disregarding the rights of similar plaintiffs;"
- Plaintiffs' Complaint at p. 17, paragraph 80, which states "the attorneys' fees and other litigation expenses plaintiffs have incurred in prosecuting this action;" and
- Plaintiffs' Complaint at p. 19, section H, which states "That the Court adjudge and decree that defendants, and each of them, pay plaintiffs' attorneys' fees and costs of suit herein;"

7. 9:00 AM CASE NUMBER: C25-00284
CASE NAME: MAKHLOUF DOUCHER VS. R.G. HILL & COMPANY
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: R.G. HILL & COMPANY
TENTATIVE RULING:

The unopposed demurrer of Defendant R.G. Hill & Company is sustained as to the Second, Third, Fourth, Sixth, Seventh, Tenth, Eleventh and Twelfth Causes of Action in the Plaintiff's Complaint without leave to amend.

8. 9:00 AM CASE NUMBER: C25-01036
CASE NAME: DAN CARRILLO VS. CHRISTOPHER BEGG
***HEARING ON MOTION IN RE: CONTEST APPLICATION FOR GOOD FAITH SETTLEMENT**
FILED BY: BEGG, CHRISTOPHER
TENTATIVE RULING:

Before the Court is a motion by defendant and cross-complainant CBC General Contractors Inc. to contest an application for good faith settlement determination and the application by plaintiffs Dan

Carillo and Emily Elliott, and cross-defendant Blaine Mervin Munsch dba Willow Creek Construction ("Applicants") for a good faith settlement determination. For the reasons set forth, the hearing is continued to **9:00 a.m. on February 13, 2026** for supplemental briefing as set forth below.

Background

Plaintiffs Dan Carillo and Emily Elliott allege they entered into a written contract with defendant and cross-defendant CBC General Contractors Inc. to perform a remodel of their residence in Lafayette (the "Project"). They allege three causes of action, including breach of contract based on CBC's failure to complete the construction by the contractual deadline, negligence in the performance of the construction, and alter ego against CBC's principals, defendants Christopher Begg and Karen Begg.

CBC filed a cross-complaint against the Plaintiffs and three subcontractors, Blaine Mervin Munsch dba Willow Creek Construction ("Willow Creek"), Michael Charles Soberanes dba Micor Electric ("Micor"), and Bay Valley Sheet Metal, Inc. CBC's cross-complaint alleged a claim against Plaintiffs for breach of the construction contract, but CBC subsequently dismissed Carillo and Elliott as cross-defendants. CBC's cross-complaint also asserts causes of action against the subcontractors Willow Creek, Micor, and Bay Valley for express contractual indemnity, and equitable indemnity, apportionment of fault and contribution and declaratory relief.

Procedural Dispute over Reply and "Sur Opposition"

Prior to commencement of this action, in February 2025, Plaintiffs entered into a settlement with Willow Creek pursuant to which Willow Creek agreed to pay Plaintiffs \$85,000, among other terms. In August 2025, Applicants filed an application for good faith settlement determination under Code of Civil Procedure section 877.6 (the "Application"). On September 8, 2025, CBC filed a motion to contest the Application under Code of Civil Procedure section 877.6(a)(2), which Applicants have opposed.

On December 30, 2025, CBC filed reply papers which included a declaration by defendant Begg and a declaration by counsel for CBC, Ian Buchanan. The Buchanan Reply Declaration attached copies of the form interrogatories served by CBC on Plaintiffs in July 2025 and a copy of Plaintiffs' responses to the form interrogatories dated September 18, 2025. (Buchanan Reply Decl. Exhs. A and B.) The Begg Reply Declaration addresses information regarding damages asserted in Plaintiffs' discovery responses.

Applicants filed a "sur opposition" on December 30, 2025. The Code of Civil Procedure does not recognize a "sur opposition" as a pleading that may be filed in connection with a motion. (*See, e.g.*, Code Civ. Proc. § 1005(b).) The content of the "sur opposition" is an objection to the Court considering the evidence submitted with CBC's reply.

Plaintiffs reached their settlement with Willow Creek in February 2025, approximately 45 days before they filed their complaint initiating this action. CBC filed its cross-complaint on May 27, 2025, and on July 30, 2025, CBC served written discovery on Plaintiffs by email. (Ginn Decl. ¶ 5.) With the written discovery pending, approximately two weeks later, on August 13, 2025, Applicants served their Application on CBC's counsel by certified mail (Ginn Decl. ¶ 6), starting the deadline for CBC to file a motion contesting the Application under Civil Code section 877.6(a)(2). Applicants also asked CBC for an extension of time for Plaintiffs to respond to CBC's discovery. The requested extension made Plaintiffs' response due after CBC's filing deadline to contest the Application.

CBC's moving papers raise Plaintiffs' failure to provide their discovery responses before CBC's motion was due and filed, and they explain the relevance of the discovery responses to the good faith determination and allocation of the settlement proceeds as they pertain to Plaintiffs' damage claims in light of the claims alleged in the Complaint and the settlement. (CBC MPA ISO Mtn. p. 3, ll. 21-25; Ginn Decl. ¶ 8.) (See also CBC MPA ISO Mtn. pp. 2-3, p. 5, ll. 15-22, p. 6, ll. 1-16, p. 6, l. 25 - p. 7, l. 8; Compl. ¶ 12, p. 3, ll. 24-27 and ¶ 16, l. 4, ll. 18-21 ["errors, defects and nonconforming work existed related to: exterior/interior foundation, subfloor support, attic/roof structural . . . misaligned doors . . .".])

The evidence filed with the CBC reply was not available when CBC filed the motion contesting the Application, based on the filing deadline under Code of Civil Procedure section 877.6(a)(2) and the extended discovery response date requested by Plaintiffs. Though the general rule is that new evidence should not be presented for the first time in a reply, such evidence can be considered when good cause is shown and when the other party is given an opportunity to address the new evidence. (See *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538.)

The Court finds good cause to consider the reply evidence under the circumstances, including the fact CBC raised the significance of the discovery responses in its moving papers and that the evidence was not available to CBC when it filed its motion in part because Plaintiffs asked for a delay in providing the responses. The Court, however, will give Applicants an opportunity to address the reply evidence.

Supplemental Briefing

Applicants may file a supplemental opposition addressed to the evidence filed with CBC's reply. Applicants' supplemental opposition shall be filed and served by January 30, 2026. CBC may file a supplemental reply to Applicants' supplemental opposition by February 6, 2026.

The parties' supplemental briefing should also address and clarify Applicants' position that the Willow Creek settlement resolves construction defects related to "framing" although the Willow Creek subcontract encompassed both framing and foundation work, and the implications for the good faith settlement determination. (See Appl. p. 3, ¶ 3, ll. 1-4, and p. 5, ll. 6-8; Opp. to Mtn. p. 3, l. 1-2 citing Kelly Decl. Exh. 2; Opp. to Mtn. p. 3, ll. 11-14, p. 5, ll. 1-3, ll. 5-6, and ll. 26-27, and p. 6, ll. 2-4.).

The continued hearing on the CBC motion and the Application shall be set for February 13, 2026.

9. 9:00 AM CASE NUMBER: C25-01756
CASE NAME: JASMINE MORRIS-HUGHES VS. ALAMEDA CONTRA COSTA TRANSIT DISTRICT
HEARING ON PETITION IN RE: LEAVE TO PRESENT LATE GOVERNMENTAL CLAIMS
FILED BY: MORRIS-HUGHES, JASMINE
TENTATIVE RULING:

For the reasons stated in the moving papers, Plaintiff's unopposed Petition for Leave to Present Late Governmental Claims is granted. Plaintiff JASMINE MORRIS-HUGHES is granted relief from the provisions of California Government Code § 945. The claim Plaintiff served on TriDelta Transit on July 11, 2025 is deemed to be timely.

10. 9:00 AM CASE NUMBER: MSC20-02090
CASE NAME: NICHOLAS M DUNHAM VS UNITED LENDING PARTNERS
*HEARING ON MOTION IN RE: ORDER TO LIFT AN ARBITRATION STAY
FILED BY: DUNHAM, NICHOLAS MICHAEL
TENTATIVE RULING:

Before the Court is Plaintiff Nicholas Michael Dunham ("Plaintiff" or "Dunham")'s motion to lift an arbitration stay to conduct discovery into Plaintiff's financial hardship. The Motion is opposed by Defendant California Lending Partners, Inc. ("CLP") and Defendant Trinidad Guzman ("Guzman") (collectively, "Defendants").

For the following reasons, the motion is **denied**.

Brief Factual and Procedural Background

This case arises out of a real estate transaction and subsequent renovation. In connection with his purchase of the subject property, Plaintiff entered into a Real Estate Purchase Agreement that included a mediation/arbitration clause. Plaintiff and Defendants stipulated to mediate and arbitrate Plaintiff's claims. Defendants then filed an ex parte application for an order compelling arbitration and stay of litigation. Plaintiff did not oppose the motion. On July 13, 2021 the Court granted the motion and compelled arbitration pursuant to CCP § 1281.2. The action was stayed pursuant to CCP § 1281.4.

Plaintiff previously moved the court for an order "to remove this case from Arbitration Stipulation." That motion was denied.

Legal Standard

When a lawsuit is stayed pending a decision through binding arbitration, "the action at law sits in the twilight zone of abatement with the trial court retaining merely a vestigial jurisdiction over matters submitted to arbitration." (*Optimal Markets, Inc. v. Salant* (2013) 221 Cal.App.4th 912 [quoting *Brock v. Kaiser Foundation Hospitals* (1992) 10 Cal.App.4th 1790, 1796].) Absent an agreement to withdraw the controversy from arbitration, no other judicial act is authorized upon stay pending arbitration by the trial court, except to appoint arbitrators if the method selected by the parties fails, grant a provisional remedy, and confirm, correct or vacate the arbitration award. (*Aronow v. Superior Court* (2022) 76 Cal.App.5th 865, 873.)

It has also been held that the court's "vestigial jurisdiction" includes: (1) appointing arbitrators if the method selected by the parties fails; (2) granting provisional remedies if the arbitration award would otherwise be rendered ineffectual; (3) determining whether plaintiff is financially unable to pay their share of arbitration costs, and, if so, to order defendant to pay plaintiff's share of costs or waive the right to arbitration; (4) confirming, correcting, or vacating the award; (5) setting a date for completion of the arbitration if it is not included in the parties' agreement; and (6) removing an arbitrator who "fails to act and his or her successor has not been appointed...." (See, *Titan/Value Equities Group, Inc. v. Superior Court* (1994) 29 Cal.App.4th 482, 486; *Aronow, supra*, at pp. 885-886; *Bosworth v. Whitmore* (2006) 135 Cal.App.4th 536, 539, 550.) "Otherwise, however, the arbitrator takes over. The court has no continuing jurisdiction." (Cal. Prac. Guide, Alternative Dispute Resolution (Rutter Group, 2022 December Update), § 5:346.2.)

The preservation of the arbitrator's jurisdiction through a stay of litigation "is essential to the enforceability of an arbitration agreement Given the purpose of the statute, the most reasonable interpretation of the stay provision is that it grants a trial court discretion to lift a stay prior to the completion of arbitration only under circumstances in which lifting the stay would not frustrate the arbitrator's jurisdiction." (*MKJA, Inc. v. 123 Fit Franchising, LLC* (2011) 191 Cal.App.4th 643, 660.)

Analysis

The Court denied Plaintiff's prior motion to "remove this case from Arbitration Stipulation" on the grounds that the Court was without jurisdiction as the requested relief (to vacate the June 2021 Stipulation for mediation/arbitration entirely and order the parties back to Court) fundamentally invaded the province of the arbitrator and the arbitration stay. Now, Plaintiff brings a new motion "for an order to lift an arbitration stay to conduct discovery into [] plaintiff's financial hardship."

The Court did note in its prior order that under *Aronow v. Superior Court*, a trial court has jurisdiction to address a request to lift an arbitration stay to conduct discovery into a plaintiff's financial hardship, and "if he demonstrates financial inability to pay the anticipated arbitration costs, to require [defendant] either to pay [his] share of the arbitrator's fee or to waive the right to arbitration." (*Aronow*, *supra*, at p. 886.)

However, while Plaintiff does attest that he is "in a precarious financial position" (Dunham Decl. at ¶ 3), he does not declare that he is financially indigent, or that he will be unable to pursue his claims if they proceed in arbitration based on financial barriers. Likewise, Plaintiff has not filed a fee waiver in the instant litigation to support such an inference. (*Aronow*, *supra*, 76 Cal.App.5th at 884 ["Where a party seeking relief from paying the arbitrator's fee is one of the persons enumerated in Government Code section 68632's list of persons 'eligible to proceed without paying court fees and costs,' the decision would be ministerial."].) While *in forma pauperis* status is not required or dispositive, here Plaintiff has failed to overcome his evidentiary burden of demonstrating he is unable to pay for his share of the costs of arbitration.

The motion is **denied**.

11. 9:00 AM CASE NUMBER: MSC21-00316

CASE NAME: CANDELL VS EBMUD

HEARING ON SUMMARY MOTION JUDGMENT

FILED BY: EAST BAY MUNICIPAL UTILITY DISTRICT

TENTATIVE RULING:

Before the Court is a motion for summary judgment filed by defendant, East Bay Municipal Utility District ("EBMUD"), on the grounds that plaintiffs' single cause of action for inverse condemnation has no merit because they are unable to establish the "public use" element of their cause of action. (Code Civ. Proc. § 437c(o)(1).) The motion is **granted**, as discussed below.

I. Background

Plaintiffs own real property at 1085 Martino Road, Lafayette, California. (Separate Statement of Undisputed Material Facts, hereinafter "SSUMF," Fact No. 1, and plaintiffs' response.)

On January 19, 1948, EBMUD recorded an easement over plaintiffs' property for a ten-foot right-of-way, for which it paid Natale Martino \$10. (SSUMF, Fact Nos. 2-3, and plaintiffs' response.)

Since the 1940s, EBMUD has utilized the easement to maintain a water distribution pipeline serving six residences. (SSUMF, Fact Nos. 5-7, and plaintiffs' responses.) There is one fire hydrant on the subject pipeline. (SSUMF, Fact No. 8, and plaintiffs' response.)

EBMUD's water pipe failed in 2020 on plaintiffs' property. As a result, EBMUD performed a nine-foot excavation to access the pipe. (Complaint, ¶¶8-9.) The pipe failure and resulting excavation and repairs damaged plaintiffs' property (erosion, retaining wall, and pool). (*Id.* at ¶¶16-17.)

EBMUD contends, in this motion, that its activity related to the pipe here is not for a public purpose. EBMUD asserts that it did not acquire the easement through eminent domain. Plaintiffs object to this "fact" and assert the property was taken through the "threat of eminent domain." (SSUMF, Fact No. 4, and plaintiffs' response.)

EBMUD further contends the purpose of the fire hydrant is to protect only five of the six residences served by the pipeline, and that no other properties are served by the hydrant. (SSUMF, Fact Nos. 9-10.) Plaintiffs object and purport to dispute these facts. The pipeline receives water from a twelve inch water distribution main. (SSUMF, Fact No. 11, and plaintiffs' response.) EBMUD asserts that, due to the placement of valves on the system, a break on the pipeline does not affect EBMUD's provision of water or fire service to any customers whose services are not connected to the pipeline, including any customers served by the main or any other pipeline that receives water from the main. Plaintiffs purport to dispute this fact. (SSUMF, Fact No. 12, and plaintiffs' response.)

On February 22, 2021, plaintiffs filed their complaint, alleging a single cause of action against EBMUD for inverse condemnation based on damage to their property (erosion, retaining walls, and pool) resulting from pipe leaks and repairs within EBMUD's easement.

EBMUD answered on June 3, 2021, asserting 39 "affirmative defenses."

II. Motion and Opposition

On October 16, 2025, EBMUD filed this motion for summary judgment, contending it is entitled to judgment on plaintiffs' complaint because plaintiffs cannot establish one or more elements of their cause of action for inverse condemnation. Specifically, EBMUD argues plaintiffs cannot establish their property was taken for a public purpose.

In support of the motion, EBMUD submits its SSUMF, supported by an index of evidence. The index contains declarations from counsel, attaching plaintiffs' complaint, a declaration from Amber L. Sarkari, a Real Estate Representative II for EBMUD who attaches the recorded easement deed from plaintiffs' predecessor, and a declaration from Roberts H. McMullin, a Senior Civil Engineer for EBMUD, who describes background events and attaches various documents, including photographs of the 202 repair project and a map illustrating the location of plaintiffs' property, the pipe at issue, and the six residences served by the pipe.

Plaintiffs oppose the motion, arguing that EBMUD essentially fails to meet its initial burden. Plaintiffs contend EBMUD waived the "private line" argument, that EBMUD's pleadings admit the line was public, and that the authorities cited by EBMUD do not apply here. Plaintiffs support their opposition with a response to the SSUMF that also contains "additional material facts" (Nos. 13-50) in opposition to the motion, a declaration from counsel accompanied by various excerpts from deposition transcripts and other documents produced during discovery, and a declaration from

professional engineer, Douglas P. Flett. Mr. Flett attaches a report authored by himself, wherein he opines that the “threat” of eminent domain was used in the acquisition of the easement.

III. Evidentiary Issues

In opposition to the motion, plaintiffs object to certain facts in EBMUD’s SSUMF. There is no authority providing for “objections” to facts; facts can only be disputed or undisputed. (See Code Civ. Proc., § 437c, subd. (b)(3); Cal. Rules of Court, Rule 3.1350(f)(2).) Accordingly, the objections are improper. Even construing the objections as relating to the underlying evidence, they are **overruled**.

With its reply, EBMUD lodges objections to ten items of evidence submitted by plaintiffs. The objections are **sustained**.

IV. Standard on Summary Judgment

To be entitled to judgment as a matter of law, a defendant (or cross-defendant) must show by admissible evidence that the action has no merit. (Code Civ. Proc., § 437c, subd. (a).) A defendant has met its burden of showing that a cause of action has no merit if it demonstrates the absence of any single essential element of plaintiff’s case or a complete defense to plaintiff’s action. (Code of Civ. Proc., § 437c, subd. (o).) Once the moving defendant has met that burden, the burden shifts to the plaintiff to show via specific facts that a triable issue of material fact exists as to a cause of action -or a defense thereto. (Code of Civil Procedure § 437c, subd. (p)(2).) A plaintiff may not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists. (*Ibid.*)

A material fact is one that might affect the resolution of the claim, affirmative defense, counterclaim, or discrete issue raised in the summary judgment motion under the applicable substantive law (Cal Rules Ct, Rule 3.1350(a)(2).) Facts that do not affect the outcome are not material. (*Knapp v. Doherty* (2004) 123 Cal.App.4th 76, 89.)

Although the burden of production shifts, the moving party always bears the burden of persuasion. (*Aguilar v. Atlantic Richfield* (2001) 25 Cal.4th 826, 850.) We strictly construe the moving party’s evidence and liberally construe the opposing party’s evidence (*Gafcon Inc. v. Ponsor & Associates* (2002) 98 Cal.App.4th 1388, 1402) without weighing the evidence or conflicting inferences. (*Aguilar, supra*, 25 Cal.4th at 856; Code Civ. Proc., § 437c, subd. (c); *Woodridge Escondido Property Owners Ass’n. v. Nielsen* (2005) 130 Cal.App.4th 559, 567-568.)

V. Discussion

A. Step 1: Issues as Framed by the Pleadings

Here, plaintiffs seek to recover under a single theory of liability, inverse condemnation, based on work performed on EBMUD’s pipeline crossing their property. Inverse condemnation is one of two basic procedural devices (the other being eminent domain) for insuring that the constitutional proscription that “[private] property shall not be taken or damaged for public use without just compensation having first been made to . . . the owner . . . ” is not violated. (*Klopping v. Whittier* (1972) 8 Cal.3d 39, 43, quoting Cal. Const., art. I, § 14.) EBMUD filed an answer that generally denied all material allegations, including that the damaged property was taken for a public purpose.

Plaintiffs argue EBMUD should have asserted the argument in its answer and by not doing so,

has waived the argument. (See Memorandum of Points and Authorities in Support of Opposition, 4:19.) EBMUD's answer denied all material allegations in the complaint. The private use defense is not "new material" required to be raised in an affirmative defense. (See Code Civ. Proc., § 431.30(b) [answer must contain denial of allegations controverted and any new matter constituting a defense]; *State Farm Mut. Auto. Ins. Co. v. Superior Court* (1991) 228 Cal.App.3d 721, 725, ["new matter" refers to something relied on by a defendant which is not put in issue by the plaintiff].)

Further, failure to plead an affirmative defense in the answer does not necessarily preclude a defendant from raising it in a motion for summary judgment. (*Nieto v. Blue Shield of California Life & Health Ins. Co.* (2010) 181 Cal.App.4th 60, 75; *Cruey v. Gannett Co.* (1998) 64 Cal.App.4th 356, 367.) Courts generally have allowed an affirmative defense to be asserted for the first time in a motion for summary judgment "absent a showing of prejudice." (*Nieto, supra*, 181 Cal.App.4th at 75.)

The issue before the Court is properly framed by the pleadings here.

B. Step 2: Initial Burden

EBMUD argues its actions in establishing or maintaining the pipeline were for private, not public, purposes. EBMUD relies on two appellate authorities, *Cantu v. Pacific Gas & Electric Company* (1987) 189 Cal.App.3d 160 and *Foley Investments, L.P. v. Alisal Water Corp.* (2021) 72 Cal.App.5th 535. These cases stand for the principle that there is no right to sue in inverse condemnation where a utility line project does not result from actions taken through eminent domain in the first place. This is because, in such cases, the utility has not made an economic business decision to assume liability in the event damage to neighboring property is proximately caused by its improvement. The line extensions in such cases is not the type of public or quasi-public activity where the risks of injury should be spread over society. (See *Cantu, supra*, 189 Cal.App.3d at 164-165.)

In *Cantu*, PG&E had contracted with the developers to provide electrical and gas service to homeowner plaintiffs. PG&E installed a joint trench for its facilities, allegedly resulting in a hillside collapse, making plaintiffs' residence uninhabitable. (*Ibid.*) The trial court held PG&E liable for inverse condemnation. (*Ibid.*) The appellate court reversed, holding that the service was for "a private use and therefore inverse liability principles are inapplicable." (*Id.* at 164.) The appellate court further noted that PG&E had not acquired an easement through legislative action or by eminent domain, but rather had been granted an easement by the private developer responsible for developing the subdivision in which plaintiffs' home was located. (*Id.* at 164-165.)

In *Foley, supra*, 72 Cal.App.5th at p. 537, the plaintiff brought an action against a water service company, Alco, after a water main that runs through a portion of the plaintiffs' apartment complex repeatedly ruptured. Alco had contracted with the developer of the property to install a water main on the property to comply with the fire marshal's requirements. (*Id.* at 539.) The developer granted Alco an easement for the main, and Alco did not take the land by eminent domain. (*Ibid.*) The appellate court upheld the trial court's ruling that the water main was for a private use. (*Id.* at 546.) The Court noted that the main was installed pursuant to a contract with a private developer rather than through eminent domain authority. (*Id.* at 544.) The Court noted that the main was installed only for the benefit of the property at issue, which included 81 units that housed about 400 occupants. (*Id.* at 540, 544.)

Here, EBMUD asserts that the pipeline is analogous to the private-use utility projects in *Cantu* and *Foley*. The undisputed evidence shows EBMUD paid \$10 to plaintiffs' predecessors for the easement. Nothing in the evidence submitted by either side shows that the compensation was paid in the course of an eminent domain proceeding. On the contrary, EBMUD's records and employee testimony indicates that the transfer was not made pursuant to eminent domain.

Plaintiffs argue that EBMUD fails to meet its initial burden. They contend that the *threat* of eminent domain is tantamount to using the power of eminent domain to obtain private property, and that eminent domain was being discussed around the time of the transfer. To the extent their admissible evidence might show such discussions, they cite no legal authority for the position that the threat is sufficient. The one case they cite is from 1946 and relates to jury instructions on valuation of property in an eminent domain proceeding. It does not support the legal equivalence of the threat of eminent domain with the use of eminent domain.

Plaintiffs also emphasize that they are "innocent owners" who obtain no benefit from the pipeline crossing their property. They argue the motion should be denied on this basis alone. The assertion ignores acceptance by plaintiffs' predecessor (Mr. Martinho) of monetary compensation for the easement to EBMUD. Further, plaintiffs' own inadmissible evidence appears to suggest that their predecessor was also paid money by the benefitted landowner(s) (Hink and/or Neal) for allowing the easement. (See Ex. 16 to Index of Evidence in Support of Opposition.) The grant was not without some benefit to the servient property.

The Court finds EBMUD has met its initial burden to show the pipeline construction and maintenance was not in pursuit of a public use.

C. Step 3: Disputes of Material Fact

With respect to plaintiffs' burden to demonstrate material factual disputes, plaintiffs' response to the separate statement indicates that the facts offered by EBMUD are not truly in dispute. Further, the additional facts offered by plaintiffs are not material to the outcome here.

Plaintiffs offer a declaration from engineer, Douglas B. Flett, in support of their opposition. (See, e.g., Additional Material Fact No. 28 [easement taken using the "threat" of eminent domain].) The attached report contains multiple inadmissible statements. EBMUD has lodged valid objections, which have been sustained.

Many of plaintiffs' additional "facts" are statements taken directly from EBMUD's pleadings. While judicial estoppel precludes a party from gaining an advantage by taking one position, and then seeking a second advantage by taking an incompatible position, the circumstances in which it applies are not present here, as discussed in the reply. The doctrine most appropriately applies when: (1) the same party has taken two positions; (2) the positions were taken in judicial or quasi-judicial administrative proceedings; (3) the party was successful in asserting the first position (i.e., the tribunal adopted the position or accepted it as true); (4) the two positions are totally inconsistent; and (5) the first position was not taken as a result of ignorance, fraud, or mistake. (*MW Erectors, Inc. v. Niederhauser Ornamental & Metal Works Co., Inc.* (2005) 36 Cal.4th 412, 422, citations omitted.) EBMUD argues that its assertions in the pleadings were made at the outset of this case, not after discovery or a thorough investigation. The inference is that, to the extent the statements appear in the

pleadings, they are either not legal positions, or were a mistake. The Court agrees. Nothing in the pleadings directly admit that the pipeline here serves a public purpose.

Many of the “additional facts” are immaterial. For example, the specific experience of Amber Sarkari (EBMUD witness) (Fact No. 18), or whether she testified that “eminent domain” is interchangeable with “condemnation” (Fact No. 20), or whether EBMUD maintains the pipeline (Fact No. 47) are not facts directly relevant to whether the pipeline serves a public purpose.

To the extent that plaintiffs highlight the uncertainty surrounding whether the 1940s negotiations involved the “threat” of eminent domain, this is speculation. (See, e.g., Additional Material Fact Nos. 21-23, 31 [argument re inability of Amber Sarkari to testify about 1940s negotiations]; *Aguilar, supra*, 25 Cal.4th at 864 [speculation is not evidence]; *Reeves v. Safeway Stores, Inc.* (2004) 121 Cal.App.4th 95, 105-106 [what witness testifies to in a deposition is not a “material fact”].)

Given that plaintiffs do not successfully meet their burden to show material disputes of fact, the motion must be granted.

12. 9:00 AM CASE NUMBER: MSN13-1889
CASE NAME: RE 316 CALLE LA MONTANA, MORAGA, CA
HEARING ON PETITION IN RE: PETITION RE: UNRESOLVED CLAIM AND DEPOSIT OF SURPLUS PROCEEDS OF TRUSTEE'S ASALE
FILED BY:
TENTATIVE RULING:

The hearing on the distribution of surplus funds is continued to April 10, 2026 at 9:00 a.m.

This matter was scheduled for hearing on the distribution of surplus funds following the sale of the property described as Legal Lot Unit 12, Subdivision 3876, Book 126, Page 8 Contra Costa County Records Assessor's Parcel Number 255-602-001. The Court did not receive any claims for the surplus funds. It appears that not all of the potential claimants were notified of the hearing.

Accordingly, the hearing is continued to allow for the clerk to serve notice on all potential claimants. The clerk is directed to send an updated Notice of Order Depositing Surplus Funds and Notice of Hearing with the new hearing date, plus a copy of this Order, to all addresses listed in the Affidavit of Mailing.

The hearing is continued pursuant to Court's motion to April 10, 2026 at 9:00 a.m. before Judge Joni Hiramoto.

Discovery Law & Motion

Continued on Next Page

13. 9:01 AM CASE NUMBER: C23-01219

CASE NAME: ELVECIO MACHADO VS. GINO CARUSO

***HEARING ON MOTION FOR DISCOVERY HAVE REQUESTS FOR ADMISSION DEEMED ADMITTED (SET ONE) AND COMPEL FURTHER RESPONSES TO REQUESTS FOR ADMISSION (SET ONE)**

FILED BY: CARS TO GO TOWING, INC.

***TENTATIVE RULING**

On motion of a party, stipulation of the parties, or *sua sponte*, a court may appoint a discovery referee to manage and rule on the discovery aspects of a case. See CCP §639(a)(5), (b)–(d); Cal Rules of Ct 3.920–3.932, *Lu v Superior Court* (1997) 55 Cal.App.4th 1264 (trial court has authority to appoint discovery referee before discovery dispute arises to assist attorneys in creating efficient discovery plan).

Discovery Referee is appointed. The Court notes that there are two (2) pending discovery motions on for January 9, 2026. These constitute the fourth and fifth discovery motions brought in the past few months. Judge O’Connell decided one Discovery Motion nine days ago, on December 30, 2025. Judge O’Connell filed orders deciding two other discovery motions six weeks earlier, on November 20, 2025. The two discovery motions set for hearing on January 9, 2026 are taken off calendar and are referred forthwith to a Discovery Referee.

The Court grants its motion, *sua sponte*, for the appointment of a Discovery Referee pursuant to Cal. Code of Civ. Proc. §§ 639(a)(5) and 640. The Referee shall hear all disputes relevant to the discovery in the action and report findings and make a recommendation thereon. Counsel shall prepare a written order with such findings and otherwise in compliance with all applicable law for the appointment of the referee, including Code Civ. Proc. § 639.

The Court finds, in its discretion, that such an appointment is necessary. The Court finds that the multiple discovery motions, the existing disputes raised by the pending motions and complexity of such issues require discovery reference. (Cal. Code of Civ. Proc. Section 639(a)(5) which states: “When the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon.”

By no later than February 6, 2026, the Parties are ordered to meet and confer pursuant to Cal. Code of Civ. Proc. § 640(a) or (b) and shall submit a stipulation and proposed order listing the proposed discovery referee to the Court along with the proposed referee’s curriculum vitae and fee schedule by no later than February 12, 2026. If the Parties are unable to jointly agree to a proposed Discovery Referee by February 6, 2026, the Parties each shall submit the name of one proposed Discovery Referee and fee schedule along with his/her/their curriculum vitae to the Court by letter, e-mailed to dept32@contracosta.courts.ca.gov by Thursday, February 12, 2026. The Court will select one of the proposed referees by unreported minute order and notify the parties. The Discovery Referee will be

requested to sign the Judicial Council ADR-110 form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 form.

No party has established an economic inability to pay a pro rata share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split equally between the parties. (I.e., if there are five parties, each party to pay one-fifth of the initial retention fee. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to all discovery motions referred to the Discovery Referee.

14. 9:01 AM CASE NUMBER: C23-01219
CASE NAME: ELVECIO MACHADO VS. GINO CARUSO
***HEARING ON MOTION FOR DISCOVERY TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES (SET ONE)**
FILED BY: CARS TO GO TOWING, INC.
TENTATIVE RULING:

See Line 13.

15. 9:01 AM CASE NUMBER: MSC22-00522
CASE NAME: SABRINA MORALES VS CEMAL O KORKUT
***HEARING ON MOTION FOR DISCOVERY COMPEL SITE INSPECTION AND FOR MONETARY SANCTIONS AGAINST DEFENDANT CEMAL OGUZ KORKUT IN THE TOTAL AMOUNT OF \$5,010.00 AGAINST DEFENDANT**
FILED BY: MORALES, SABRINA
***TENTATIVE RULING**

Judgment has been entered in this case. The motion is dropped from calendar.

16. 9:01 AM CASE NUMBER: MSC21-00777
CASE NAME: COMFY HEATING & AIR CONDITIONING VS KRISHAN KALRA
***HEARING ON MOTION FOR DISCOVERY COMPEL PRODUCTION PURSUANT TO BUSINESS RECORDS SUBPOENA TO BIOGENEX LABORATORIES**
FILED BY: COMFY HEATING & AIR CONDITIONING INC
***TENTATIVE RULING**

On December 3, 2025, parties told the Court they settled the case.
Discovery motion dropped from Calendar per moving party's email to Dept. 32.

17. 9:01 AM CASE NUMBER: C22-00901

CASE NAME: SALEHOMOUM VS. BAHRAMI-DAGHIGH

***HEARING ON MOTION FOR DISCOVERY COMPEL DEPOSITION AND PROD OF DOCS**

FILED BY: SALEHOMOUM, MOJDEH

***TENTATIVE RULING**

The Motion of Plaintiff Mojdeh Salehomoum to Compel the Deposition of Defendant David Bahrami-Daghigh and for Production of Document and Request for Monetary Sanctions as to Defendant Navid Bahrami-Daghigh and/or his Counsel of Record (Plaintiff's Motion) is granted, as to the deposition, the production of documents and as to imposition of sanctions.

1. Plaintiff Motion to Compel Deposition of Defendant
Section 2025.450(a) of the Code of Civil Procedure [CCP] provides

If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under [Section 2025.230](#), without having served a valid objection under [Section 2025.410](#), fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

Plaintiff Salehomoum timely served a deposition notice on attorney Michael Waddington, Defendant Bahrami-Daghigh's counsel, on August 19, 2025. That notice sought a deposition of Defendant on September 9, 2025. (Ex. A to the Declaration of Geoffrey Steele filed November 25, 2025.) The notice was timely pursuant to CCP § 2025.270 in that it sought a deposition at least 10 days plus 2 courts days for service from the date of the service of the notice.

Defendant Bahrami-Daghigh did not object to this notice in a timely fashion. Sections 2025.410(a) and (b) require an objecting party to serve a written objection to the notice at least three calendar days prior the date for which the deposition is scheduled. Subsection (a) of CCP 2025.410 provides that a party that does not serve a timely written objection "waives any error or irregularity."

Defense counsel Waddington sent an email to Plaintiff counsel on Monday, September 8, 2025 –the day before the noticed deposition-- stating that his client would be "unable to sit for his deposition today [sic] due to the capacity of his attorney who intends to file a motion to be relieved of counsel by weeks [sic] end. I apologize for any inconvenience to council [sic] or client, as it is unintentional."

The November 8th email from defense counsel was defendant's only response to the notice and it did not constitute a timely objection to the Plaintiff's notice of deposition. First, it was not an objection to the notice at all. It was merely a notice that the defendant would not participate. Counsel Waddington did not assert a legal objection to the notice. Second, it was not timely because it was sent to Plaintiff only one day in advance of the noticed date instead of three days in advance as required by CCP § 2025.410. Defendant waived any error or irregularity to the notice pursuant to § 2025.410(a).

Counsel Waddington asserted that he “made Mr. Steele aware of having been diagnosed with a terminal illness.” The defense opposition papers do not specify when this notice was given to Counsel Steele. Counsel Waddington provided no description of how if at all his condition would preclude counsel from participating in a deposition. Nor did Counsel Waddington describe or request an accommodation that may have allowed the deposition to proceed. The deposition was noticed to be taken via video and audio conference (Zoom), thus avoiding any need for counsel or client to travel. Counsel Waddington stated that the defendant could sit for the deposition “due to the capacity of his attorney who intends to file a motion to be relieved of counsel by weeks [sic] end.” The court finds that this assertion lacks credibility as the email was sent November 8, 2025, and yet Mr. Waddington is still counsel of record as of January 8, 2026, two months after the assertion that he expected to be relieved as counsel by the end of the week of November 8, 2025.

Counsel Waddington has a duty to withdraw if he is unable to carry out representation of his client. The California Rules of Professional Conduct 1.16(a) provides in relevant part, “Except as stated in paragraph (c), a lawyer shall not represent a client or, where representation has commenced, shall withdraw from the representation of a client if...(3) the lawyer’s mental or physical condition renders it unreasonably difficult to carry out the representation effectively...”

Here, Counsel Waddington asserted that he did not have “the capacity” to defend the deposition of his client and did not communicate further with Counsel Steele. Counsel Waddington did not suggest a time or manner in which the deposition could proceed. He did not ask for a continuance, he did not ask for any conditions (such as shortened days) that would have allowed him to proceed with the deposition. There is no evidence that Counsel Waddington sought to associate another attorney to defend the deposition in his place, or to assist with document production. The court finds that Counsel Waddington, by asserting his lack of capacity to appear, not offering any conditions under which he or another attorney could appear for a deposition, and by not withdrawing as he stated he would, has failed to meet and confer in good faith with Counsel Steele.

In addition, the court finds that Counsel Waddington did not respond to the Plaintiff’s Counsel’s subsequent attempts to re-schedule the deposition. On September 17, 2025, Counsel Steele sent an email to Counsel Waddington to meet and confer and to see if he had in fact filed a motion to withdraw as he had stated he would do so by September 12, 2025. (Ex. D to Plaintiff’s Motion). After not hearing from Mr. Waddington by September 19, 2025, Plaintiff served another deposition notice for Defendant to appear on October 13, 2025. (Ex. E. to Plaintiff’s Motion). Even though Counsel Waddington did not serve any written objections to this notice, Defendant and his counsel failed to appear on October 13, 2025. (Ex. F to Plaintiff’s Motion).

The court finds that Counsel Waddington has not responded in good faith to Plaintiff’s meet and confer attempts to resolve the issue of Defendant’s deposition. Counsel Waddington has asserted for the past two years that he would be withdrawing from this matter based on undergoing treatment for cancer, in Case Management Conference Statements filed since February of 2024. He does not offer any solutions or cooperation—he asserts an intention to withdraw from the case as his explanation for non-cooperation and non-compliance but does not do so. (Ex. G, H and I to Plaintiff’s Motion.) The court

is not unsympathetic to counsel's health concerns, however, Counsel Waddington has a duty to withdraw if he is unable to represent his client effectively. While Counsel Waddington claims he cannot find another attorney to take over the case, there is nothing barring him from bringing in an attorney to defend a deposition or help with document production.

The court orders Counsel Waddington, by January 12, 2026 at noon, to provide three dates for the deposition of the defendant to Plaintiff in writing. Each of the dates on or before January 23, 2026. Plaintiff may select one of the three dates and the deposition is to proceed day to day excluding weekends and holidays until completed for a minimum of 6 hours a day unless the Plaintiff agrees to fewer hours each day. The deposition is to be accomplished by video and audio conference (Zoom). Counsel Waddington is also ordered to assist another attorney to prepare to defend Defendant during the deposition if he is unable personally to defend Defendant in the deposition.

2. Motion for Production of Documents

Defendant did not raise any arguments in opposition to the Plaintiff's motion for production of documents specified in the Plaintiff's Second Amended Notice of Deposition (attached as Ex. A to the Plaintiff's Motion). California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion." See *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257. The motion to compel production is granted. Defendant is ordered to respond and to produce documents at the time of the deposition.

3. Sanctions.

The court finds Plaintiff's request for \$5,062.50 to be reasonable and appropriate given the level of detail necessary to bring this motion, the time spent attending a deposition on October 13, 2025 that Defendant did not object to and did not attend, counsel's twenty years of experience in civil litigation, and billing rate of \$675 an hour.

The parties are reminded to appear on January 27, 2026 at 10:00 am in Department 32 for jury trial.